

## 22STCV12123 22STCV12123

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-07-31

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Case Number: 22STCV12123 Hearing Date: July 31, 2026 Dept: F43

Dept. F43

Hearing Date: 07-31-26

Case # 22STCV12123, Willis v. County  
of Los Angeles

Trial Date: 08-31-26

MOTION TO QUASH

DEPOSITION SUBPOENA OR ISSUE A PROTECTIVE ORDER

MOVING PARTY: Defendant County of Los Angeles

RESPONDING PARTY: Plaintiff Lynette Willis

RELIEF REQUESTED

Order quashing subpoena of former County Chief

Executive Officer Sachi Hamai or, in the alternative, granting a protective order prohibiting plaintiff from taking the Apex deposition of Hamai and imposing \$3,660 in monetary sanctions against plaintiff and her counsel of record.

RULING: Motion to quash the deposition subpoena is granted. The court awards the County \$2,760 in monetary sanctions.

## SUMMARY OF ACTION

On April 11, 2022, plaintiff Lynette Willis filed this personal injury action against defendant County of Los Angeles (the County), asserting a single dangerous condition of public property cause of action. Ms. Willis alleges that on May 2, 2021, she was riding her bicycle eastbound on Templin Highway, she hit a large hole/crack in the road, and sustained injuries. This matter was assigned to Chatsworth Courthouse Department F43 on August 28, 2025.

On September 4, 2025, Ms. Willis filed a motion to reopen discovery for the limited purpose of deposing the County's person most knowledgeable (PMK), to compel the PMK deposition, to compel production of documents in the deposition notices, and to impose \$3,150 in monetary sanctions against the County and its counsel of record. The court granted the motion in part, requiring the PMK depositions and document production to proceed.

On May 11, 2026, Ms. Willis deposed the County's PMK, Nydia Rivas, concerning various topics related to roadway maintenance and budgeting. (Declaration of Hannah R. Hogoboom ¶ 4.) During the Rivas deposition, Ms. Willis's counsel noted the County's Fiscal Year 2019-2020 Final Adopted Budget reflects it was submitted to the Los Angeles County Board of Supervisors by then-Chief Executive Officer Sachi Hamai. (Id., Exh. A.) According to the County, Ms. Rivas's testimony about Ms. Hamai was limited to questions about whether she knew who Ms. Hamai was and if she knew where Ms. Hamai was currently located and worked. (Id. ¶ 5, Exh. B: Deposition of Nydia Rivas at 40:3-21.)

About two months later on July 9, 2026, Ms. Willis served another notice to take the deposition of the County's PMK on July 30, 2026, concerning the County's complete incident investigation report; all request to repave the subject roadway in the five years preceding the incident; and the County's budget from the 10 years preceding the incident through the present. (Hogoboom Decl., Exh. E.)

On July 10, 2026, Ms. Willis electronically served the County with a deposition notice for the taking of Ms. Hamai's deposition on July 29, 2026. (Hogoboom

Decl., Exh. C [identifying Ms. Hamai as a former employee of the County].) The deposition subpoena did not list any matters for examination or any documents to be produced.

On July 21, 2026, the County's attorney,

Hannah Hogoboom, emailed Ms. Willis's counsel a meet and confer message. (Hogoboom Decl. ¶ 7, Exh. D.) Ms. Hogoboom objected to the deposition

subpoena as improper under California's apex doctrine and as not being

reasonably calculated to lead to the discovery of admissible evidence. (Id., Exh. D at p. 1.) The message also notified counsel that a

motion to quash and for a protective order would be filed if the subpoena was

not withdrawn and requested to meet and confer further. On July 16, 2026, deputy counsel for the

County left a voicemail for Ms. Willis's counsel, Christopher Bulone, about the

noticed deposition and requested a return call.

(Declaration of Kevin Engelen ¶¶ 6-7.)

However, counsel did not return the phone call or withdraw the

deposition subpoena. (Engelen Decl. ¶

7; Hogoboom Decl. ¶ 7.)

On July 23, 2026, the County file the instant

motion to quash the deposition subpoena or, in the alternative, to issue a

protective order and impose \$3,660 in monetary sanctions against Ms. Willis and

her counsel of record. On July 29, 2026,

Ms. Willis filed an opposition. The

County replied on July 30, 2026.

## SUMMARY OF ARGUMENTS

The County argues the court should quash the deposition

because the apex doctrine bars the deposition of high-level government

officials such as Ms. Hamai. According

to the County, Ms. Willis has failed to identify any compelling reason for

deposing Ms. Hamai and provided no proof that Ms. Hamai has direct personal

factual knowledge pertaining to the material issues of this matter. The County states good cause exist for quashing

the subpoena or issuing a protective order to avoid unwarranted annoyance, oppression,

undue burden, embarrassment, and expense to Ms. Hamai and the County.

In opposition, Ms. Willis contends the apex

doctrine does not bar the deposition because Ms. Hamai is no longer an employee

of the County is no longer the County's Chief Executive Officer. Because Ms. Willis has come forward with a

specific, documented, non-harassing basis tied to the witness's own conduct,

there is no sound reason to bar the deposition.

Next, as the executive who formulated and controlled the County's budget, Ms. Hamai has direct personal knowledge of the County's budgetary priorities, considering she made and directed the funding decisions that determined whether known roadway hazards would be repaired. These budgetary decisions are material. The requested information is not available through less intrusive discovery. The court should enter a narrowly tailored protective order, limiting the time and confining the subject matter to the formulation of the County's roadway-maintenance budget and Ms. Hamai's knowledge of deferred maintenance of known roadway hazards. The court should deny sanctions because the opposition is substantially justified

#### MEET AND CONFER

A motion under sections 2025.410 or 2025.420 must be accompanied by a meet and confer declaration that complies with Section 2016.040. (Code Civ. Proc., §§ 2025.410, subd. (c), 2025.420, subd. (a).) In Department F43, "meet and confer" means in person, by telephone, or by video conference. An email does not suffice.

Here, the "meet and confer" requirement is met because the County's attorney contacted Ms. Willis's counsel telephonically.

#### ANALYSIS

##### A. Quash

Deposition Subpoenas pursuant to Code of Civil Procedure sections 1987.1 and 2025.420

After serving written objections to a deposition notice, the objecting party may move for an order quashing the deposition notice or staying the deposition. (Code Civ. Proc., § 2025.410, subd. (c).) "Any party served with a deposition notice that does not comply with Article 2 (commencing with Section 2025.210) waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any

other attorney or party on whom the deposition notice was served.” (Code Civ. Proc., § 2025.410, subd. (a); see also Code Civ. Proc., § 2025.410, subd. (b) [requiring personal service of the objection when served exactly three calendar days before the scheduled deposition].)

“If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subd. (a).)

After reviewing the moving papers, the court grants the County's motion to quash the subpoena.

At first glance, the deposition subpoena appears facially defective because the notice was served on an entity and did not specify the matters for examination. (Code Civ. Proc., § 2020.310, subds. (e).) However, this is not enough to quash the subpoena because Ms. Hamai is a former employee of the County.

Second, serving a deposition subpoena on the County to compel the appearance of a former employee is improper. Former employees or persons formerly affiliated with party-entities are not required to attend a deposition unless subpoenaed directly and individually. (Maldonado v. Superior Court (2002) 94 Cal.App.4th 1390, 1398.) Here, the moving papers do not specify whether Ms. Willis directly served the subpoena on Ms. Hamai. The proof of service included with the deposition subpoena is blank and the separate proof of service document attached to the subpoena lists only counsel for Ms. Willis and the County. (Declaration of Kevin J. Engelién, Exh. C at pp. 5-7.) Furthermore, an entity is “not required to produce former employees” in response to a deposition subpoena even if “the former employees are far more knowledgeable about the litigation than anyone currently employed.” (Maldonado,

supra, 94 Cal.App.4th at p. 1398.)

Because Ms. Hamai is no longer a County employee, the deposition subpoena served on the County is the wrong mechanism, and Ms. Willis must subpoena Ms. Hamai directly.

However, the court finds the “apex doctrine” does not prohibit deposing Ms. Hamai.

Under the “apex doctrine,” “agency heads and other top governmental executives are not subject to deposition absent compelling reasons.” (Westly v. Superior Court (2004) 125 Cal.App.4th 907, 910.) The doctrine’s core rationale is protecting the time and functions of current government officers. (Nagle v. Superior Court (1994) 28 Cal.App.4th 1465, 1468.) “[A]n official’s time and the exigencies of his everyday business would be severely impeded if every plaintiff filing a complaint against an agency head, in his official capacity, were allowed to take his oral deposition. Such procedure would be contrary to the public interest, plus the fact that ordinarily the head of an agency has little or no knowledge of the facts of the case.” (Ibid.)

The doctrine applies to “regardless of whether the official is a named defendant or a third party, or ‘whether the official gained the information sought while in his or her present position or while serving in prior, lower ranking positions at the agency.’” (Ross v. Superior Court (2022) 77 Cal.App.5th 667, 680.) “[W]here a party seeks to depose a high government official, and the official moves for a protective order, the burden is on the deposing party to show that compelling reasons exist for permitting the deposition.” (Contractors’ State License Bd. v. Superior Court (2018) 23 Cal.App.5th 125, 132.) “An exception will be made to this rule only when the deposing party makes two showings. First, the deposing party must show that the government official ‘has direct personal factual information pertaining to material issues in the action.’” (Contractors’ State License Bd., supra, 23 Cal.App.5th at p. 132, citation omitted.) “Second, the deposing party must also show ‘the information to be gained from the deposition is not available through any other source.’” (Ibid., citation omitted; Liberty Mutual Ins. Co. v. Superior Court (1992) 10 Cal.App.4th 1282, 1287 [requiring the propounding party to first exhaust less intrusive discovery methods such as interrogatories and depositions of

lower-level employees before an apex deposition will be allowed].)

Because the doctrine's core rationale is protecting the ongoing operation of government by shielding certain high-ranking officials from the burden of depositions, the rationale does not apply when the official no longer holds the high-ranking position.

The court notes that in *Nagle v. Superior Court* (1994), the Court of Appeal addressed the apex doctrine and issued a writ protecting both a current and former Director of the Department of Health Services because the propounding party did not establish the directors had personal knowledge of specific events at issue during their tenure and the propounding party could have investigated the issues through other sources or less burdensome means. (*Nagle*, supra, 28 Cal.App.4th at p. 1468-1469.) The Court did not address the "current" or "former" status of the subpoenaed individuals.

Here, the underlying justification for the apex doctrine no longer exists as to Ms. Hamai because she is not currently employed by the County.

However, other than Ms. Hamai's name and title appearing on the Fiscal Year 2019-2020 Budget, Ms. Willis fails to present evidence that demonstrates Ms. Hamai has direct and personal knowledge concerning how the overall budget was formed and allocated.

A copy of the Fiscal Year 2019-2020 Final Adopted Budget identifies Chief Executive Officer, Sachi A. Hamai, as the individual who submitted the budget to the County's Board of Supervisors. (*Engelien Decl.* ¶ 3, Exh. A at p. 1.)

During the deposition of County's PMK, Nydia Rivas, Ms. Rivas testified that there has been a greater need for repaving County roads than there is available budget from 2011 through 2021. (*Declaration of Christopher V. Bulone* ¶ 3, Exh. 1 at 38:22-39:4.) Ms. Rivas also confirmed that of the \$36.055 billion FY 2019-2020 budget, only \$50 to \$82 million was allocated toward road resurfacing. (*Id.*, Exh. 1 at 45:9.) Ms. Rivas could not state who exactly makes the final decisions on the overall budget. During the PMK deposition of the County's road superintendent, Juvenal Arroyo, Mr. Arroyo testified that Templin Highway (where Ms. Willis was allegedly injured) had not been repaved since 1966 and

rated in the lowest category in the Pavement Condition Index. (Bulone Decl., Exh. 2 at 79:24-81:17.) Mr. Arroyo also confirmed that the primary reason

the Templin Highway was not repaved until five years after he requested it was

due to unavailable funds. (Id. at

43:18-44:14.) Mr. Arroyo also explained

the process for repaving projects from submitting a five-year plan to

engineering, administration approval, and then overall approval through the Board

of Supervisors. (Id., Exh. 2 at

86:9-87:3.) Mr. Arroyo did not state how

the overall budget is approved or provide facts indicating Ms. Hamai is

involved in engineering, administration, or approved the overall budget with

the Board of Supervisors.

The PMK testimony suggests the final decisions on how to

allocate budgetary funds throughout the entire budget are decided by "administration"

County employees rather than department heads or lower level employees working

in those departments. However, the facts

and evidence presented by Ms. Willis fail to demonstrate any executive-level

employee, including Ms. Hamai, had direct or personal knowledge of budgetary

decision making and policy.

Finally, Ms. Willis states that written discovery cannot

capture the decision-making process. Ms.

Willis notes that every witness with operational responsibility for road

maintenance has testified they lack knowledge concerning how the overall budget

allocations are made. Ms. Willis claims

all other routes of discovery have been exhausted but presents no other such

discovery beyond three PMK depositions.

Without a showing of the other discovery methods employed

by Ms. Willis beyond the depositions, the court cannot determine whether Ms.

Willis has exhausted all other discovery avenues. Ms. Willis did serve an additional PMK

deposition notice for July 30, 2026, concerning the County's investigation of

paving issues and the County's budget concerning such issues. (Hogoboom Decl., Exh. E.) However, as the PMK deposition has yet to

occur, it is unclear what other factual information Ms. Willis seeks from Ms.

Hamai that she cannot obtain at the July 30, 2026, PMK deposition.

Therefore, the court grants defendant County of Los

Angeles's motion to quash the deposition subpoena for Ms. Sachi Hamai served on



July 10, 2026.

## B. Sanctions

The County seeks \$3,660 in monetary sanctions against Ms. Willis and her counsel of record for fees incurred in bringing this motion.

"[T]he court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive."  
(Code Civ. Proc., § 1987.2, subd. (a).)

The County is entitled to sanctions because the subpoena was improperly served and Ms. Willis fails to demonstrate how Ms. Hamai has personal knowledge of the decision-making process for County budgeting.

Attorney Hannah R. Hogoboom bills \$300 per hour. (Hogoboom Decl. ¶ 11.) The request includes the following: 6.0 hours preparing the moving papers; 4.0 hours reviewing and replying to an opposition; 2.0 hours related to the hearing on this motion; and \$60 filing fee.

The court finds the hourly rate is reasonable but reduces the time requested because the motion hearing will last no more than one hour, and the time for drafting the motion and reviewing and replying to the opposition is excessive.

Therefore, the court awards the County sanctions in the reduced amount of \$2,760: 5.0 hours preparing the moving papers; 3.0 hours reviewing and replying to an opposition; 1.0 hour related to the hearing on this motion; and \$60 filing fee.

## CONCLUSION and ORDER

Motion to quash the deposition subpoena is granted.

The court awards the County \$2,760 in

monetary sanctions. Plaintiff Willis and her counsel of record are ordered to pay the County's counsel within 30 days of this order.

Defendant County of Los Angeles to give notice.